

INSTRUCTIONS ON NOTICE OF ENTRY OF ORDER OF EXPUNGEMENT

This form references specific South Dakota Codified Laws (SDCL), and you can find these laws on the South Dakota Legislature website. If you have any legal questions, it is highly recommended that you consult with an attorney. Court staff are unable to provide you with legal advice or assist you in completing this form. For specific questions related to the forms, you can contact the Legal Form Helpline at 1-855-784-0004 or email UJS staff at ujssrlhelp@uj.s.state.sd.us.

IMPORTANT NOTICE

Whether or not your request for an expungement on a record of arrest is granted, the Judge will enter an order granting or denying and a Notice of Entry will need to be filed with the Clerk of Court.

To complete this form, you will need to:

- ☐ Complete the caption.
- ☐ Enter the day the Order was signed by the Judge, the name of the Judge who signed the Order, and the County in which it was filed in.
- ☐ Sign and date.
- ☐ Complete page 2, the Statement of Mailing UJS-395.
- ☐ Mail a copy of the Notice of Entry UJS-395 and a copy of the Order on Motion for Expungement UJS-394 to the States Attorney.
- ☐ File the Notice of Entry and the Statement of Mailing UJS-395 with the Clerk of Court.

signature/date review zone

STATE OF SOUTH DAKOTA

IN CIRCUIT COURT

COUNTY OF _____

_____ JUDICIAL CIRCUIT

participant/case info review zone

IN THE MATTER OF THE EXPUNGEMENT
OF RECORDS RELATED TO:_____
(Name of Applicant for Expungement)
Petitioner.

Case No.: _____

**NOTICE OF ENTRY OF ORDER FOR
EXPUNGEMENT**

PLEASE TAKE NOTICE that pursuant to SDCL § 23A-3-30, the Order on Motion for Expungement was entered in the above-entitled matter on the _____ day of _____, 20____, by the Honorable _____ and duly filed by the _____ County South Dakota Clerk of Courts. A copy of said Order of Expungement is attached hereto and served upon the office of the prosecuting attorney.

Dated this _____ day of _____, 20_____.

Petitioner Signature_____
Petitioner Name_____
Address_____
City, State, Zip Code_____
Phone Number

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STATEMENT OF MAILING

I, _____ (full legal name of
 Petitioner), being sworn, state that on the _____ day of _____, 20____, I
 served a copy of the Order on Motion for Expungement and a copy of the Notice
 of Entry of Order on Motion for Expungement by placing a true and correct copy of
 the document in an envelope addressed to the following named individual: _____
 _____ at the following mailing address: _____ in
 the City of _____, State of _____, Zip Code _____
 _____ and depositing the envelope, with sufficient postage, in the United
 States Mail at _____ (city and state
 mailed from).

*I declare under penalty of perjury under the law of South Dakota that the foregoing
 is true and correct. Signed on the _____ day of _____, _____ at
 _____.
 (City or other location, and State)*

 Petitioner Signature

 Petitioner Name

 Address

 City, State, Zip Code

 Phone Number

signature/date review zone